

District- Jhalokati

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 467 of 1999

Md. Jalal Shikdar

...defendant appellant petitioner

- versus-

Abdul Mannan Howlader being dead his heirs
1.(a) Kohinur Begum and others

...plaintiff respondents opposite parties

No one appears

... for the defendant appellant petitioner

Mr. Golam Rabbani, Advocate with

Mr. Md. Firoz Kobir, Advocate

...plaintiff respondents opposite parties

Heard on: 29.11.2023 and 13.12.2023

Judgment on: 21.01.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite parties No. 1 to 4 to show cause as to why the judgment and order dated 15.06.1998, passed by the learned Subordinate Judge, 2nd Court, Jhalokati, in Miscellaneous Appeal No. 44 of 1996 affirming the judgment and Order No. 137 dated 30.9.1996 passed by the learned Assistant Judge, Kathalia, Jhalokati, in Miscellaneous Case No. 07 of 1996 under order IX rule 13 of the Code of Civil Procedure, should not

be set aside and/or passed such other or further orders as to this court may seem fit and proper.

During issuance of the Rule an order was passed staying operation of the impugned judgment and order.

The short facts for the purpose of disposal of the Rule are that the opposite parties No. 1 to 4 as plaintiffs instituted Title Suit No. 241 of 1986 for declaration of title and partition of land in the Court of Assistant Judge, Jhalokati and the said suit was transferred to the Court of Assistant Judge, Kathalia and the same was re-numbered as Title Suit No. 28 of 1993. The defendant Nos. 1(Ka) to 1(Cha), 32, 39, 41, 42 and 43 contested the suit by filing separate sets of written statements. The learned Assistant Judge by his judgment and decree dated 30.06.1993 decreed the suit on contest against contesting defendants and exparte against the non-contesting defendants including the present petitioner Md. Jalal Shikder (defendant No 10). Thereafter the petitioner filed Miscellaneous Case No 07 of 1996 under Order IX rule 13 of the Code of Civil Procedure against the exparte decree passed against him stating inter alia that no summons was served upon him through process server nor registered post and the plaintiff opposite parties fraudulently and collusively managed to get the exparte decree against him by suppressing summons.

The plaintiff-opposite parties contested the miscellaneous case by filing written objection. The learned Assistant Judge after hearing

the parties was pleased to dismiss the miscellaneous case by his judgment and order dated 30.09.1996, against which the defendant-petitioner preferred Miscellaneous Appeal No. 44 of 1996 in the Court of District Judge, Jhalokati. On transfer the miscellaneous appeal was heard by the learned Subordinate Judge, now Joint District Judge, Jhalokati who by his judgment and order dated 15.06.1998 was pleased to disallow the appeal and uphold the judgment and order passed by the learned Assistant Judge.

Being aggrieved and dissatisfied with the above judgment and order passed by the learned Subordinate Judge in Miscellaneous Appeal No. 44 of 1996, the defendant No 10 i.e. the present petitioner moved this court under section 115(1) of the Code of Civil Procedure and obtained the present Rule and order of stay.

No one appears on behalf of the defendant petitioner to press the Rule.

Mr. Golam Rabbani Advocate along with Mr. Md. Firoz Kobir, the learned Advocate appearing on behalf of the plaintiff-opposite party has opposed the Rule.

I have heard the submissions of the learned Advocate on behalf of the plaintiff-opposite parties and perused the record along with the impugned judgment and order and other connecting materials on record.

It appears that summonses upon all the defendants were simultaneously issued through process server and registered post. Record shows that concerned process server served the summons upon the defendant-petitioner by hanging. In his report the process server stated that having appeared in the addresses of the defendants No. 5,9,10,16,18,22 and 23 found them absent and having found their agents namely defendants No 4,15,21 and 28 he offered them to receive the summonses of the defendant-petitioner and others and having been refused he served the same by affixing copies on the outer doors. But the plaintiff-opposite parties could not prove that the defendant-petitioner had appointed any of the defendants No. 4,15,21 or 28 in any manner as his agent for receiving the summons. Moreso, it is well established principle of law that the plaintiff who obtained the exparte decree is to prove the service of summons by producing the persons on whose presence the copy of summonse was affixed. But in the present case it appears that the plaintiff did not produce the process server or the mokabela persons to support the contention of service of summons. On the other hand, it appears that postal summons was not duly addressed because the present petitioner “Md. Jalal Sikder” was the defendant No. 10 of the suit, but instead of “Md Jalal Sikder” “Md. Jamal Sikder” has been written as defendant No 10. Thus, it cannot be said that upon the defendant-petitioner the postal summons was served.

In view of the above discussions I am of the opinion that the summons was not duly served upon the defendant petitioner.

In the application under order IX rule 13 it has been clearly stated that for the first time on 03.05.1996 the defendant petitioner heard about the title suit and exparte decree from one Khalek Khan in presence of Ayub Ali Hawlader. In support of this assertion the petitioner as P.W. 1 stated that on 03.05.1996 he had heard about the suit and exparte decree, but he has not been given suggestion during his cross-examination that before 03.05.1996 he knew about the suit and exparte decree. The P.W.2 Ayub Ali Hawlader supporting the petitioner's case has stated that in his presence Khalek Khan informed the defendant-petitioner about the suit and exparte decree. Thus, it is found that the miscellaneous case was filed within the specified time of limitation.

In view of the forgoing discussions and considering the facts and circumstances, in my opinion the defendant-petitioner succeeded in proving the miscellaneous case, but learned trial judge wrongly disallowed the miscellaneous case and the learned Subordinate Judge now, Joint District Judge, committed an error of law dismissing the appeal occasioning failure of justice and accordingly I find substance in the Rule and, as such, the same is deserved to be made absolute.

In the result, the Rule is made absolute.

Setting aside the impugned judgment and order passed in the Misc Appeal No. 44 of 1996 the exparte judgment and decree dated 15.06.1998 passed in the Title Suit No. 28 of 1993, so far as it relates to the defendant-petitioner only, is set aside and the title suit is restored in its original file and number. The trial court is directed to dispose of the title suit giving reasonable chance the petitioner-defendant No. 10 to contest, within six months form receipt copy of this judgment, in accordance with law.

The order of stay granted at the time of issuance of the Rule is hereby vacated.

Let the lower courts' record along with a copy of this judgment be transmitted at once.